

25STCV37515 25STCV37515

County: los-angeles

Division: Civil Law and Motion

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV37515

ASABELLE

GOLDSTOCK vs BRIDGET KELLY

July

30, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR PRELIMINARY INJUNCTION.

RULING:

The Court denies Defendant's
Motion for Preliminary Injunction.

The parties may request
an expedited trial date if desired.

Defendant to give notice.

I.

BACKGROUND

On December 23, 2025, ASABELLE
GOLDSTOCK (Plaintiff) filed a Complaint against
BRIDGET KELLY (Defendant).

On May 11, 2026,
Plaintiff filed the First Amended Complaint (FAC), listing Causes of Action
for:

1.

CONVERSION

2.

CLAIM AND DELIVERY REPLEVIN

3.

TRESPASS TO PERSONAL PROPERTY

4.

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

5.

CIVIL THEFT PER PENAL CODE § 496(A).

Plaintiff alleges that Defendant
refuses to return his service dog, notwithstanding repeated demands, starting in
or about November 2025.

On January 5, 2026, the
assigned Judge denied injunctive relief, including because, "it is hard to

credit such claims of harm when plaintiff admits in the past she has been separated from Marshall 'for several weeks in March/April 2025' while traveling between Los Angeles and New York, apparently without any adverse health consequences." (Minutes entered 1/5/26, p. 2.)

On June 18, 2026,
assigned Judge denied Plaintiff's Application for Writ of Possession because, "plaintiff has not shown that an application for prejudgment writ of possession may be issued for personal property located outside of California." (Minutes entered 6/18/26, p. 2.)

On July 1, 2026, Plaintiff
filed the Motion for Preliminary Injunction, for an Order providing for Defendant to immediately return Plaintiff's trained psychiatric service dog and related matters.

Defendant opposes, based
on arguments such as that the Motion is an unauthorized one for reconsideration, and the evidence is in dispute as to dog ownership.

II.

LEGAL STANDARD

"The ultimate questions
on a motion for a preliminary injunction are (1) whether the plaintiff is 'likely to suffer greater injury from a denial of the injunction than the defendants are likely to suffer from its grant,' and (2) whether there is 'a reasonable probability that the plaintiffs will prevail on the merits.'" (Huong Que, Inc. v. Luu (2007) 150 Cal.App.4th 400, 408. Accord Buckland v. Threshold Ent., Ltd. (2007) 155 Cal.App.4th 798, 806, disapproved on other grounds by Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 337.) "An evaluation of the relative harm to the parties upon the granting or denial of a preliminary injunction requires consideration of: '(1) the inadequacy of any other remedy; (2) the degree of irreparable injury the denial of the injunction will cause; (3) the necessity to preserve the status quo; [and] (4) the degree of adverse effect on the public interest or interests of third parties the granting of the injunction will cause.'" (Vo v. City of Garden Grove (2004) 115 Cal.App.4th 425, 435.)

“ [T]he more likely it is that plaintiffs will ultimately prevail, the less severe must be the harm that they allege will occur if the injunction does not issue [I]t is the mix of these factors that guides the trial court in its exercise of discretion.’

” (Right Site Coalition v. Los Angeles Unified School Dist. (2008) 160 Cal.App.4th 336, 342.) In exercising discretion, courts balance the equities, including a determination of which party would suffer greater injury. (Shoemaker v. County of Los Angeles (1995) 37 Cal.App.4th 618, 633.)

One legitimate purpose of injunctions is to preserve the status quo pending trial. (Continental Baking Co. v. Katz (1968) 68 Cal.2d 512, 528.) With regard to injunctive relief, “status quo” has been defined as meaning, “the last actual peaceable, uncontested status which preceded the pending controversy.” (14859 Moorpark Homeowner's Ass'n v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1408.) Mandatory preliminary injunctions rarely are granted, and are reserved for extreme cases where the right is established clearly. (Teachers Ins. & Annuity Ass'n v. Furlotti (1999) 70 Cal.App.4th 1487, 1493.)

Trial court rulings as to preliminary injunctions are upheld if judges acted within their discretion, and based upon substantial evidence. (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 738-739; Alliant Ins. Services, Inc. v. Gaddy (2008) 159 Cal.App.4th 1292, 1299-1300.) Granting or denying a preliminary injunction, on a verified complaint, together with oral testimony or affidavits, even if conflicting, rests in the sound discretion of trial courts, and is not interfered with on appeal, except for abuse of discretion. (Planned Parenthood v. Wilson (1991) 234 Cal.App.3d 1662, 1667, fn. 3.)

III.

ANALYSIS

a.

Contentions

Plaintiff requests an

Order including the following provisions:

1.

A mandatory injunction requiring Defendant Bridget Kelly to immediately return Plaintiff's trained psychiatric service dog, Marshall, pending final adjudication; or, alternatively,

2.

An order prohibiting Defendant from transferring, concealing, relocating, rehoming, gifting, selling, boarding, licensing, re-registering, or otherwise altering Marshall's location, custody, or ownership during the pendency of this action;

3.

An order requiring Defendant to disclose Marshall's present physical location, veterinary providers, licensing information, registration records, boarding arrangements, and current medical condition;

4.

An order requiring preservation of all veterinary, licensing, registration, insurance, boarding, training, microchip, and related records concerning Marshall;

5.

Temporary visitation and reasonable access pending trial; and

6.

Such further equitable relief as the Court deems just and proper.

(Motion, p. 2.)

Defendant asserts positions, including that:

1.

This is the fourth try to obtain the same relief, without any new facts, law, or circumstances.

2.

There is insufficient proof that Plaintiff used a service dog. (Cal Health & Saf Code § 113903.)

3.

The most recent status quo has been for Defendant to possess the dog.

4.

Rulings may not be enforced in a sister-state.

5.

A final determination should be made about shared custody arrangements.

b.

Reasoning

Preliminarily, the Court

determines that this is an impermissible motion for reconsideration in disguise, given similar, denied requests made in prior motions, such as those judges' orders referenced above. "Section 1008's purpose is " ' "to conserve judicial resources by constraining litigants who would endlessly bring the same motions over and over, or move for reconsideration of every adverse order and then appeal the denial of the motion to reconsider." ' ' " (Even Zohar Constr. & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 840, 844.) A motion can be subject to statutory requirements under Code of Civil Procedure section 1008, regardless of its title, if it raises the same issues previously ruled upon. (Leibert v. Transworld Systems, Inc. (1995) 32 Cal.App.4th 1693, 1699.)

Next, an application for

a preliminary injunction must be based upon sufficient evidence. (Code Civ.

Proc., § 527, subd. (a); Bank of America

v. Williams (1948) 89 Cal.App.2d 21, 29.) Judges may decide the motion

based upon written evidence but have discretion to allow oral testimony. (Eddy v. Temkin (1985) 167 Cal.App.3d 1115, 1120-1121.) Absent any objection, declarations may be received into

evidence by reference to the case file. (Waller

v. Waller (1970) 3 Cal.App.3d 456, 464.)

Generally, determinations

of dog ownership turn upon the particular facts and evidence, as illustrated by the following opinion excerpts:

The

evidence shows that defendant DuNah purchased Eric; that the dog's license listed him as owner, giving his residence rather than his business address; and that the ownership of the dog was never transferred to Elite. The trial judge may well have entertained doubt that the \$100 paid for the dog was an item chargeable to or intended to be paid out of defendant DuNah's annual \$1,200 check for entertainment and other small expenses in view of the amount and character of the expenditure and the fact that his brothers each received a check in like amount but did not join in the purchase of the dog. The personal care and attention which defendant DuNah constantly gave the dog is not without significance in support of the finding that he owned and kept Eric. Applying the above principles, the evidence is clearly ample to support the finding that he was the owner of the dog and this finding is sufficient to sustain the judgment.

(Ellsworth v. Elite
Dry Cleaners, Dyers & Laundry (1954) 127 Cal.App.2d 479, 483.)

It
had been bought and paid for by appellant. He had paid the license tax for keeping the dog. It had a collar on that he had bought, lettered and worded as follows: "Glen, from T.J.F." "Glen" was the name of the dog, and "T.J.F." were the initials of appellant's name. Appellant was seen daily upon his walks and rides in and about the neighborhood where he resided in company with the dog, and was very much attached to him. From all this the jury might well have believed that appellant was the owner of the dog at the time plaintiff was injured, and that the alleged gift of it to Mrs. Patrick was but a subterfuge in order to escape liability.

(O'Rourke v. Finch
(1908) 9 Cal.App.324, 325–326.)

Additionally, other service
dogs are generally available from a variety of sources. " '[P]ersons authorized to train service dogs' means any person who is credentialed to do so by virtue of their education or experience." (Miller v. Fortune Com. Corp. (2017)
15 Cal.App.5th 214, 227.)

Here, the evidence regarding
sole or shared dog ownership is greatly in dispute, such that Plaintiff's ability to prevail is not probable, but only possible.

For instance, there is evidence that the dog lived with both Plaintiff and Defendant, and then with Defendant. (Opposition, Exhibit D (Defendant's Declaration), ¶¶ 2-4, 7-11.) Additionally, evidence indicates both ways as to whether the dog has been a service animal and whether Plaintiff has lived without a service animal for over one year without objection. (Ibid., ¶¶ 5-6, 10-11.) Plaintiff's Reply Declaration emphasizes that (1) the dog ownership was never joint, (2) leaving the dog with Defendant was only a temporary arrangement, and (3) Plaintiff's text about "our dog" was not an admission but strategic out of concern.

Therefore, the Court denies the Motion to preserve the status quo of dog possession pending trial.

IV.

CONCLUSION

The Motion is denied.